

File No.: EXP202211980

RESOLUTION No.: R/00356/2023

Considering the complaint filed on November 3, 2022, with this Agency by A.A.A. (hereinafter the complainant) against the COMMUNITY OF OWNERS ***COMMUNITY.1 (hereinafter the respondent) for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant requested the right of access against the respondent with NIF H83953752, and their request, as stated by the complainant, did not receive the legally established response. The complainant states that, after suffering a motorcycle accident with the garage door while being alone in the garage at that moment, they requested the president of the community of owners for access to the images from the surveillance cameras that recorded the events. According to the complainant, they were refused to submit their request, with the concierge as a witness. The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

No response has been given to the complainant once their complaint was communicated by the AEPD, which seems to imply a violation of the requested right of access.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding the complainant's claims to be satisfied. Consequently, on February 3, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have been initiated by said admission agreement, will be six months.

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The aforementioned agreement granted the respondent entity a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate. This entity summarized its allegations as follows:

The respondent dedicates almost the entirety of its written response to stating that the Agency makes incomplete and imprecise assertions and that the principle of legality and the presumption of innocence are violated. It particularly emphasizes that the complainant did not identify themselves in the appropriate manner.

They claim that, from the community administration, the complainant was verbally informed that the procedure to access the images was to be done in writing, including certain formal requirements, such as informing of their complete identity, the estimated date and time of the incident, a description of the events contained in the images for which access is requested, a description and provision of a current image of themselves, an indication of the reason for their request, and the intended use of the images. They conclude that they have acted correctly and request the case to be archived.

FOURTH: The allegations presented by the respondent have been forwarded to the complainant, so

that, within fifteen working days, they may formulate any allegations they consider appropriate: After a detailed analysis of the allegations of the respondent, rebutting each of their assertions, the complainant concludes that their right has not been attended to.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

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In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with this procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than in a

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unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding the fulfillment of the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be understood as granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, in such case, the right of access to the personal data."

The right of access is a highly personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

In the case analyzed here, the claiming party exercised their right of access to a recording of images from the parking lot of which they are a co-owner due to an accident at the exit.

The responding party does not comply with the claimant's right, neither when the claimant requests it verbally, nor subsequently when they do so in writing, nor when this...

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After reviewing all the documentation, the Agency decides to admit the claim for processing due to the lack of response to the claimant in order to address the right.

It cannot be argued that a right should not be attended to because the identification is incomplete when the claimant is perfectly identified, using the request for additional information as a pretext to

deny the right. This is especially true in cases involving parties that typically maintain a neighborly relationship, such as a property owner and a community of property owners.

It is logical to think that, regardless of whether the claimant submitted the request with some incomplete data, the responding party should have had, in addition to sufficient information about the claimant due to their relationship, the possibility to request what was missing almost verbally. Furthermore, once the claim was submitted to this Agency, we have verified that the amount of information exchanged is sufficient for the responding party to have no doubt about the claimant, their identity, and what they are requesting. It is even mentioned in one of the documents that there has already been a viewing by the respondent, as communicated to us by the claimant. Therefore, none of the motivations of the respondent justify the fact that they have not attended to the requested right. Finally, the responding party must review the content of the right of access to ensure that they are not demanding from the claimant issues that the regulations do not require. One thing is to ask for details to locate the recording, and another is to ask what the claimant will use it for. The requested right of access is independent of the claimant's motivation, as long as it is subsequently used within the law. Based on the above, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, it is appropriate to uphold the claim that originated this procedure, as the right of access was not carried out properly.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. and to instruct the COMMUNITY OF PROPERTY OWNERS ***COMMUNITY.1 with NIF ***NIF.1, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right of access or a reasoned denial indicating the reasons why the request cannot be attended to, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription under Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to the COMMUNITY OF PROPERTY OWNERS ***COMMUNITY.1.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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